

Opinion of SOTOMAYOR, J.

See *id.*, at 144 (distinguishing a challenge to “individual instances of discrimination or law enforcement overreach,” which lends itself to a *Bivens* action, from a challenge to “large-scale policy decisions,” which does not). No special factors counsel against allowing Boule’s *Bivens* action to proceed.

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Boule also argues that his First Amendment retaliatory-investigation claim is cognizable under *Bivens*. I concur in the Court’s judgment that it is not, but I arrive at that conclusion by following precedent rather than by applying the Court’s new, single-step inquiry. *Ante*, at 492; see *infra*, at 517–520.

This Court has repeatedly assumed without deciding that *Bivens* extends to First Amendment claims, see *Wood v. Moss*, 572 U. S. 744, 757 (2014), but has never squarely held as much, see *Reichle v. Howards*, 566 U. S. 658, 663, n. 4 (2012). Accordingly, Boule’s First Amendment retaliation presents a new context for the purpose of the *Bivens* analysis. See *Ziglar*, 582 U. S., at 148 (noting that a case can present a new context if it implicates a different constitutional right than those already recognized as cognizable under *Bivens*).

Moving to the second step of the *Bivens* inquiry, unlike Boule’s Fourth Amendment claim, there is “reason to pause” before extending *Bivens* to Boule’s First Amendment claim. *Hernández*, 589 U. S., at —. In particular, his First Amendment claim raises line-drawing concerns similar to those this Court identified in *Wilkie*, 551 U. S. 537. In *Wilkie*, a landowner sought to bring a *Bivens* action against federal officials whom the landowner accused of harassment and intimidation meant to extract an easement across his property. 551 U. S., at 541. The Court observed that “defining a workable cause of action” for such a claim was “difficul[t].” *Id.*, at 555; see also *id.*, at 557. Recognizing a *Bivens* action to redress retaliation under such circumstances would, in the Court’s view, “invite claims in every sphere of legitimate